



Equality Impact and Needs Analysis Guidance

Late Night Levy – variation

Guidance notes

Things to remember:

Under the Public Sector Equality Duty (PSED) public authorities are required to have due regard to the aims of the general equality duty when making decisions and when setting policies. Understanding the affect of the council's policies and practices on people with different protected characteristics is an important part of complying with the general equality duty. Under the PSED the council must ensure that:

- Decision-makers are aware of the general equality duty's requirements.
- The general equality duty is complied with before and at the time a particular policy is under consideration and when a decision is taken.
- They consciously consider the need to do the things set out in the aims of the general equality duty as an integral part of the decision-making process.
- They have sufficient information to understand the effects of the policy, or the way a function is carried out, on the aims set out in the general equality duty.
- They review policies or decisions, for example, if the make-up of service users changes, as the general equality duty is a continuing duty.
- They take responsibility for complying with the general equality duty in relation to all their relevant functions. Responsibility cannot be delegated to external organisations that are carrying out public functions on their behalf.
- They consciously consider the need to do the things set out in the aims of the general equality duty not only when a policy is developed and decided upon, but when it is being implemented.

Best practice guidance from the Equality and Human Rights Commission recommends that public bodies:

- Consider all the [protected characteristics](#) and all aims of the general equality duty (apart from in relation to marriage and civil partnership, where only the discrimination aim applies).
- Use equality analysis to inform policy as it develops to avoid unnecessary additional activity.
- Focus on the understanding the effects of a policy on equality and any actions needed as a result, not the production of a document.
- Consider how the time and effort involved should relate to the importance of the policy to equality.
- Think about steps to advance equality and good relations as well as eliminate discrimination.
- Use good evidence. Where it isn't available, take steps to gather it (where practical and proportionate).
- Use insights from engagement with employees, service users and others can help provide evidence for equality analysis.

Equality analysis should be referenced in community impact statements in Council reports. Community impact statements are a corporate requirement in all reports to the following meetings: the cabinet, individual decision makers, scrutiny, regulatory committees and community councils. Community impact statements enable decision makers to identify more easily how a decision might affect different communities in Southwark and to consider any implications for equality and diversity.

The public will be able to view and scrutinise any equality analysis undertaken. Equality analysis should therefore be written in a clear and transparent way using plain English. Equality analysis may be published under the council's publishing of equality information, or be present with divisional/departmental/service business plans. These will be placed on the website for public view under the council's Publications Scheme. All Cabinet reports will also publish related

Equality analysis should be reviewed after a sensible period of time to see if business needs have changed and/or if the effects that were expected have occurred. If not then you will need to consider amending your policy accordingly. This does not mean repeating the equality analysis, but using the experience gained through implementation to check the findings and to make any necessary adjustments.

Engagement with the community is recommended as part of the development of equality analysis. The council's Community Engagement Division and critical friend, the Forum for Equality and Human Rights in Southwark can assist with this (see section below on community engagement and www.southwarkadvice.org.uk).

Whilst the equality analysis is being considered, Southwark Council recommends considering implications arising from socio-economic disadvantage, as socio-economic inequalities have a strong influence on the environment we live and work in. As a major provider of services to Southwark residents, the council has a policy commitment to reduce socio-economic inequalities and this is reflected in its values and aims. For this reason, the council recommends considering impacts/needs arising from socio-economic disadvantage in all equality analyses, not forgetting to include identified potential mitigating actions. **The Council has adopted the Socio-Economic Duty as part of its overall equality, diversity and inclusion policy commitments in the Southwark Equality Framework.** This requires us to ensure we do not make any conditions worse for those experiencing socio-economic disadvantage through our policies and practices.

Section 1: Equality impact and needs analysis details

Proposed policy/decision/business plan to which this equality analysis relates		REVIEW OF LATE-NIGHT LEVY IN SOUTHWARK.			
Equality analysis author		Esther Jones			
Strategic Director:		Aled Richards			
Department		Environment and Leisure	Division	Licensing	
Period analysis undertaken		November 2025			
Date of review (if applicable)					
Sign-off		Position		Date	

Section 2: Brief description of policy

1.1 Brief description of review

The Licensing Act 2003 came into effect on 25 November 2005. The Act introduced a regime for the licensing of alcohol, regulated entertainment and late night refreshment, to be administered by the local licensing authority.

The Police Reform and Social Responsibility Act 2011 permits licensing authorities to charge a Late Night Levy (LNL) on persons who operate premises selling alcohol between 00:00 (midnight) and 06:00hrs. The council elected to bring in the LNL in 2019. The resultant income must be spent on policing, regulating and providing support services within the late night levy period. Amendments were made to the Act in 2023 that widened the scope of LNL.

As a result of conducting the Equality Analysis the implementation of the Late Night Levy does not appear to have any adverse effects on people who share protected characteristics and no further actions are recommended at this stage.

Section 3: Overview of service users and key stakeholders consulted

2. Service users and stakeholders

Key users of the department or service	• Premises licence holders • Personal licence holders • Members of the public
Key stakeholders were/are involved in this review.	• Internal data analysts • The Licensing Committee • Legal and Finance

Section 4: Pre-implementation equality impact and needs analysis

This section considers the potential impacts (positive and negative) on groups with 'protected characteristics', the equality information on which this analysis is based and any mitigating actions to be taken, including improvement actions to promote equality and tackle inequalities. An equality analysis also presents as an opportunity to improve services to meet diverse needs, promote equality, tackle inequalities and promote good community relations. It is not just about addressing negative impacts.

The columns include societal issues (discrimination, exclusion, needs etc.) and socio-economic issues (levels of poverty, employment, income). As the two aspects are heavily interrelated it may not be practical to fill out both columns on all protected characteristics. The aim is, however, to ensure that socio-economic issues are given special consideration, as it is the council's intention to reduce socio-economic inequalities in the borough. Key is also the link between protected characteristics and socio-economic disadvantage, including experiences of multiple disadvantage.

Socio-economic disadvantage may arise from a range of factors, including:

- poverty
- health
- education
- limited social mobility
- housing
- a lack of expectations
- discrimination
- multiple disadvantages

The public sector equality duty (PSED) requires us to find out about and give due consideration to the needs of different protected characteristics in relation to the three parts of the duty:

1. Eliminating discrimination, harassment and victimisation
2. Advancing equality of opportunity, including finding out about and meeting diverse needs of our local communities, addressing disadvantage and barriers to equal access; enabling all voices to be heard in our engagement and consultation undertaken; increasing the participation of underrepresented groups
3. Fostering good community relations; promoting good relations; to be a borough where all feel welcome, included, valued, safe and respected.

The PSED is now also further reinforced in the two additional Fairer Future For All values: that we will

- Always work to make Southwark more equal and just
- Stand against all forms of discrimination and racism

Age - Where this is referred to, it refers to a person belonging to a particular age (e.g. 32-year-olds) or range of ages (e.g. 18 - 30-year-olds).	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential Socio-Economic impacts/needs/issues arising from socio-economic disadvantage (positive and negative)
Any policy reviews must take into account protected characteristics. There is anecdotal evidence to suggest that younger independent businesses may be run by younger people. The licensing authority looks to encourage the diversity of local businesses, which would include businesses run by younger entrepreneurs.	Late Night Levy is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises and therefore could be adding an additional financial burden to some businesses, which is likely passed on to customers.
Equality information on which above analysis is based	Socio-Economic data on which above analysis is based
Census Data	N/A
Mitigating and/or improvement actions to be taken	
No mitigation is necessary.	

Disability - A person has a disability if s/he has a physical or mental impairment which has a substantial and long-term adverse effect on that person's ability to carry out normal day-to-day activities. Please note that under the PSED due regard includes: Giving due consideration in all relevant areas to "the steps involved in meeting the needs of disabled persons that are different from the needs of persons who are not disabled include, in particular, steps to take account of disabled persons' disabilities." This also includes the need to understand and focus on different needs/impacts arising from different disabilities.	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/needs/issues arising from socio-economic disadvantage (positive and negative)
No specific impacts have been identified or raised in relation to this. It is acknowledged that businesses	Late Night Levy is not intended to benefit or disadvantage people

should make 'reasonable adjustments' to accommodate people identifying with having a disability. See Page 83 of the Southwark Statement of Licensing Policy 2021 to 2026. No health impacts are identified	because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises and therefore could be adding an additional financial burden to some businesses, which is likely passed on to customers.
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating and/or improvement actions to be taken	
N/A	N/A

Gender reassignment: - The process of transitioning from one gender to another. Gender Identity: Gender identity is the personal sense of one's own gender. Gender identity can correlate with a person's assigned sex or can differ from it.	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)
This LNL review will not benefit or disadvantage non-binary residents or licence holders.	Late Night Levy is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises and therefore could be adding an additional financial burden to some businesses, which is likely passed on to customers.
Equality information on which above analysis is based.	Socio-economic data on which above analysis is based
Census	N/A

Mitigating and/or improvement actions to be taken	
N/A	N/A

Marriage and civil partnership – In England and Wales marriage is no longer restricted to a union between a man and a woman but now includes a marriage between a same-sex couples. Same-sex couples can also have their relationships legally recognised as 'civil partnerships'. Civil partners must not be treated less favourably than married couples and must be treated the same as married couples on a wide range of legal matters. (Only to be considered in respect to the need to eliminate discrimination.)	
Potential impacts (positive and negative) of proposed policy review this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)
Late Night Levy review will have no impact on marital status and does not treat same sex couples or those in civil partnerships less or more favourably than anyone else. It relates to charges that are brought on all premises operating within certain times of the day.	Late Night Levy is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises and therefore could be adding an additional financial burden to some businesses, which is likely passed on to customers.
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating or improvement actions to be taken	
N/A	N/A

Pregnancy and maternity - Pregnancy is the condition of being pregnant or expecting a baby. Maternity refers to the period after the birth, and is linked to maternity leave in the employment context. In the non-work context, protection against maternity discrimination is for 26 weeks after giving birth, and this includes treating a woman unfavourably because she is breastfeeding.	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)

The review of the Late-Night Levy is not able to disadvantage pregnant women or those on maternity leave. No impacts are therefore identified.	Late Night Levy is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises and therefore could be adding an additional financial burden to some businesses, which is likely passed on to customers.
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating and/or improvement actions to be taken	
N/A	N/A

Race - Refers to the protected characteristic of Race. It refers to a group of people defined by their race, colour, and nationality (including citizenship) ethnic or national origins. N.B. Gypsy, Roma and Traveller are recognised racial groups and their needs should be considered alongside all others.	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)
The cultural markup of the Borough is wide and varied. The Licensing Authority would want to encourage this diversity. Policy would never be intended to prevent any particular ethnic group from enjoying alcohol, late night refreshment or regulated entertainment. It should however be noted that the Borough is continually changing in terms of regenerating community areas. This has had an effect on local amenities. It has been mooted that some of the late-night economy may face challenges with the continuation of LNL. However, this is a generalisation and not directed at any particular community groups. This is a potential continuation of an existing policy. No negative impacts are identified. Paragraphs 184 to 192 of the Southwark Statement of Licensing Policy 2021 to 2026 states the purpose of the LNL, types of premises exempt under the LNL, reduction that the council may grant to identified premises i.e. those in receipt of small business rate relief which is not based on race.	Late Night Levy is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises and therefore could be adding an additional financial burden to some businesses, which is likely passed on to customers.
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating and/or improvement actions to be taken	
N/A	N/A

Religion and belief - Religion has the meaning usually given to it but belief includes religious and philosophical beliefs including lack of belief (e.g. Atheism). Generally, a belief should affect your life choices or the way you live for it to be included in the definition.	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/needs/issues arising from socio-economic disadvantage (positive and negative)
LNL review will have no apparent benefit or disadvantage to any particular religion. It should be noted that places of worship are exempt from licensing restrictions, as long as they are not being used for non-religious, commercial purposes.	Late Night Levy is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises and therefore could be adding an additional financial burden to some businesses, which is likely passed on to customers.
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating and/or improvement actions to be taken	
N/A	N/A

Sex - A man or a woman.	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/needs/issues arising from socio-economic disadvantage (positive and negative)
LNL review will have no benefit or disadvantage to any particular sex.	Late Night Levy is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises and therefore could be adding an additional financial burden to some businesses, which is likely passed on to customers.

Equality information on which above analysis is based	Socio-economic data on which above analysis is based
N/A	N/A
Mitigating and/or improvement actions to be taken	
N/A	N/A
Sexual orientation - Whether a person's sexual attraction is towards their own sex, the opposite sex or to both sexes	
Potential impacts (positive and negative) of proposed policy/decision/business plan; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/needs/issues arising from socio-economic disadvantage (positive and negative)
Concerns are ongoing on the impacts that face LGBTIQ+ premises remaining open to provide safe spaces for that community. Significant numbers of premises have closed across London in recent years, yet this is likely to be as a result of commercial redevelopment, rather than a direct intention to reduce the number of such venues. Southwark seeks to protect all such venues. LNL review is not intended to prevent any particular group based on LGBTIQ+ self-identification from enjoying alcohol or entertainment at night. Paragraphs 184 to 192 of the Southwark Statement of Licensing Policy 2021 to 2026 states the purpose of the LNL, types of premises exempt under the LNL, reduction that the council may grant to identified premises i.e. those in receipt of small business rate relief which is not based on race.	LNL is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises adding an additional financial burden to some businesses, which is likely passed on to customers
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating and/or improvement actions to be taken	
N/A	

Human Rights There are 16 rights in the Human Rights Act. Each one is called an Article. They are all taken from the European Convention on Human Rights. The Articles are The right to life, Freedom from torture, inhuman and degrading treatment, Freedom from forced labour , Right to Liberty, Fair trial, Retrospective penalties, Privacy, Freedom of conscience, Freedom of expression, Freedom of assembly, Marriage and family, Freedom from discrimination and the First Protocol
Potential impacts (positive and negative) of proposed policy review.
None identified.
Information on which above analysis is based
Census Data
Mitigating and/or improvement actions to be taken
N/A

Conclusions

Summarise main findings and conclusions of the overall equality impact and needs analysis for this area:

As a result of conducting the Equality Analysis the implementation of the Late Night Levy (LNL) does not appear to have any adverse effects on people who share protected characteristics and no further actions are recommended at this stage.

Section 5: Further equality actions and objectives

5. Further actions			
Based on the initial analysis above, please detail the key mitigating and/or improvement actions to promote equality and tackle inequalities; and any areas identified as requiring more detailed analysis.			
Number	Description of issue	Action	Timeframe
1	None	N/A	N/A

Implementation Equality Impact and Needs Analysis